BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
BENCH-2

COMPANY PETITION NO.(CAA)60/(AHM)/2021

IN

COMPANY APPLICATION NO. (CAA) 36 of 2021

In the matter of the Companies Act,2013

[In the matter of *sections 230 - 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016]*

In the matter of Composite Scheme of Arrangement

OF

Excel source International Private Limited
...Petitioner Company No.1 /Transferor Company

Cool N Care Technologies Private Limited
...Petitioner Company No.2/Transferor Company 1

Solution 4 Energy Private Limited
...Petitioner Company No.3/Transferor Company 2

Golf way Leisure Private Limited
...Petitioner Company No.4/Transferor Company 3

Redclieffe Real Estate Private Limited
...Petitioner Company No.5/Transferor Company 4

House & Life Technology Private Limited
...Petitioner Company No.6/Transferor Company 5

Jaiveek Agro Biotech Private Limited
...Petitioner Company No.7/Transferor Company 6

Metmin Resource Consultants Private Limited
...Petitioner Company No.8/Demerged Company 6

Order Pronounced on:17.11.2021

CORAM:
DR.DEEPTI MUKESH,MEMBER (J)
KAUSHALENDRA KUMAR SINGH, MEMBER (T)

MEMO OF PARTIES

Excelsource International Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956,
Having its registered office at
301/302, Sampatti Complex
Sardarbaug Lane
B/h. Bombay Shopping Centre
Race Course, Vadodara-390 007
Gujarat, India

...Petitioner Company No.1 /Transferor Company

Cool N Care Technologies Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
101 Sapatti Complex,
Opp Jagdish Hall, Race Course
Vadodara 390007, Gujarat, India.

...Petitioner Company No.2/ Transferee Company 1

Solutions 4 Energy Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h. Bombay Shopping Centre, Race Course,
Vadodara-390 007, Gujarat, India

...Petitioner Company No.3/ Transferee Company2

Golf way Leisure Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h. Bombay Shopping Centre, Race Course,
Vadodara-390 007, Gujarat, India

...Petitioner Company No.4/ Transferee Company3

Redclieffe Real Estate Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
201/202, Sampatti Complex, SardarBaug Lane,
B/h. Bombay Shopping Centre, Race Course,
Vadodara-390 007, Gujarat, India
...Petitioner Company No.5/ Transferee Company4

House & Life Technology Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h. Bombay Shopping Centre, Race Course,
Vadodara-390 007, Gujarat, India

...Petitioner Company No.6/ Transferee Company5

Jaiveek Agro Biotech Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
202, Sampatti Premises, Sardarbaug Lane,
B/h. Bombay Shopping Centre, Race Course,
Vadodara-390 007, Gujarat, India

...Petitioner Company No.7/ Transferee Company6

Metmin Resource Consultants Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office at
301/302, Sampatti Complex, Sardarbaug Lane,
B/h. Bombay Shopping Centre, Race Course,
Vadodara-390 007, Gujarat, India
...Petitioner Company No.8/ Demerged Company

For the Petitioner: Ld. Adv. Ravi Pahwa

ORDER

Per: Dr. Deepti Mukesh, Member (Judicial)

1. This joint petition by way of Second Motion is admitted and fixed for hearing and final disposal on 03.01.2022

2. It is submitted that in terms of Order dated 15th June 2021 passed by this Tribunal in Company Application No. CA(CAA)-36(AHM)2021, the meetings of all the Equity Shareholders of all the Applicant Companies and meetings of Unsecured Creditors of Applicant No.2, Applicant No.3. Applicant No.4, Applicant No.5, Applicant No. 6, Applicant No.7 and Applicant No.8 were dispensed with. In respect to the Secured and Unsecured Creditors of Applicant No.1 as well as Secured Creditors of Applicant No.8, directions were issued for the convening of their respective meetings vide the same order.

3. Subsequently, in compliance with the order dated 15th June, 2021the aforementioned meetings were duly convened on 05.08.2021 and the proposed Scheme was unanimously approved by the members present and voting in the respective meetings. The reports of the Chairperson and Scrutinizer have also been placed on record. The reports were filed on 22.09.2021 and the present petition is filed within time.

4. It is therefore now directed that the notice of final hearing is fixed for 03.01.2021 and shall be advertised in the daily newspapers namely, the **"Business Standard" in English and "Lok Satta" in Gujarati** having circulation in Vadodara not less than 10 days before the aforesaid date fixed for hearing.

5. In addition to the above public notice, the petitioner companies shall individually serve the notice of the Petition on the following Authorities namely, (a) to the Central Government through Regional Director (Northern -Western Region) at Ahmedabad, (b)to the Registrar of Companies, at Ahmedabad, Gujarat (c) to the concerned Income Tax Department within whose jurisdiction the Petitioner Companies' assessment is made(d) to the Official Liquidator attached to High Court of Gujarat, at least 30 days before the date fixed for hearing of the above Petition.

6. All the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper

publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

7. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

8. The next date of hearing is fixed on 03.01.2021 for consideration of the approval of the scheme of arrangement as contemplated between the Companies and their Shareholders.

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR.DEEPTI MUKESH
MEMBER (JUDICIAL)

Rahul LRA